# SAFEGUARDING CHURCH UNITY AND JUSTICE: CANONICAL REMEDIES FOR VIOLATIONS OF CANONS 285 AND 287

**BY**

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**ABSTRACT**

*Inappropriate participation of clerics in active politics and assuming of public office are actions and choices that clearly disrupt Church unity, harmony and justice. The church from her rich experience would have envisaged this reality; and this explains why through her legislations in Canons 285 and 287 prohibits clerics from being partakers of active politics and public office without the authorization of the competent church authorities. Despite these prohibitions, violations of them abound by some clerics. And this action is unbecoming of clerical state and affects adversely the order, serenity and harmony of the Church. To enhance the restoration of orderliness and the needed decorum, the competent ecclesiastical authorities are expected to explore and employ canonical remedies to avert such violations. The canonical remedies recommended in this write-up are twofold. The first being penal remedies which are majorly preventive. The second is the decree of the Catholic Bishops Conference of Nigeria (CBCN) which contains sanctions or punishment to be meted on those who defy warnings and corrections and proceed with the violation. It is expected that the foregone applied, violation of prescriptions prohibiting the inappropriate participation of clerics in active politics and the assuming of public office would be hindered. Thus, the disruption of Church unity and justice will as an implication be hindered and same safeguarded. The fruits and benefits of the safeguard of unity and justice owing to the compliance of clerics will enhance a more robust ministry from their part and the impact of the same ministry of theirs will be more felt both within and outside the ecclesial community.*

## Preamble

It is an established fact that Catholic Church does not operate in accordance with the whims and caprices of individual members. She operates following stipulated order, guidelines and due processes that would have been tested and trusted through the ages. This explains why structures, institutions and procedures or processes within her abound for a smooth, steady, stable, equitable, just, valid and legitimate operation that would enhance and regulate efficient ecclesiastical functionality. The Church would function efficiently when indispensable values she treasures as expressed in her tradition and teachings like unity and justice are not undermined, manipulated and even violated. Owing to how Catholic Church treasures unity and justice and as well ensures that she is not found wanting through blatant disregard towards their application, she cannot afford not to protect same from disregard, violation and abuse. It is owing to the foregone that ecclesiastical legislations and procedures clearly prescribe how

Christ's faithful base on their status are expected to act so that irregularities and aberrations are not entertained but avoided and hindered.

The irregularities and aberrations which manifest through the choices, decisions and actions of some members of Christ's faithful obviously violate Church's unity and justice even when legislations and prescriptions abound. Canons 285 and 287 of the 1983 Code of Canon law are very clear in their prescriptions on the fact that clerics are prohibited from participating in active politics and assuming public office except with the permission of the Local Ordinary. Reality however, has shown that these prescriptions are sometimes disregarded and violated by some clerics who as members of the Church should be better aware and well informed of such prohibitions.

The blatant disregard for and violation of clearly stated prescriptions as the one being considered causes disorder and even harm to the valuable assets or treasures of the Church. Among such valuable assets and treasures are unity and justice. As long as such disregards and violations are not tackled employing the corresponding ecclesiastical canonical remedies, the tendency may be to have the Church experiencing more of such disorders and abnormalities to her detriment.

It is owing to the need to avert and when necessary, correct these abnormalities that this contribution to knowledge seeks to offer some canonical remedies that could be employed to tackle violations as these that cause the Church so much in what she has and continues to invest as well as promote in the areas of her unity and justice. This is also a way of working towards safeguarding the Church not just in the areas of unity and justice but other essential ramifications inclusive. And this is in accordance with the role of Canon law which "…safeguards the unity of faith and morals. It favours catholicity by establishing local Churches in all the regions of the world and by issuing directives for the apostolate all over the world.... Canon law thus, is at the service of the mystical Body of Jesus Christ. Canon law serves to render the Church one, holy, Catholic and apostolic"[1]

**Church Unity and Justice**

In the Catholic Church, unity and justice are familiar terms and activities that have been employed, explored, taught and practiced all through the ages. The Church in her tradition, teachings and lived experience has invested so much and expended same in the area of unity and justice owing to how such profits her as an institution and humanity as a whole. The unity of the Church according to Donald Attwater is

> A mark of the Church. Christ established one, and only one, Church, and this Church is an organic whole. It is one society, external and visible, whose members profess the same faith, follow the same essential forms of worship, use the same sacraments, and submit to the one central authority, the Pope… . It is this visible unity which is the mark, and not simply internal unity, grounded in union with Christ….[2]

The Church Fathers have always presented the Church as the one people of God – Father, Son and Holy Spirit. The Trinitarian foundation for the unity of the Church is established in the saving action of one God (1Cor. 8:6), in the revelation of the one crucified, risen and glorified Christ (Rom. 14:7f), also through the movement of the one Spirit of God and of Jesus Christ (Eph 2:18). Consequent of his death and resurrection Jesus Christ brought about the redemption of humanity, sent his Spirit upon it and formed human beings mystically into becoming members of his own body. It is specifically through the sacraments of Baptism and Eucharist, that Christians become united to the glorified Christ in such a manner that the life of the trinity is communicated to them. Being incorporated into Jesus Christ happens at baptism… As such, all those who are baptized live in intimate, vital union with Christ and as a matter of fact, are all united to one another.[3]

Justice being a cardinal moral virtue "Consists in the constant and firm will to give their due to God and neighbor. Justice towards God is called the "virtue of religion". Justice towards men disposes one to respect the rights of each and to establish in human relationships the harmony that promotes equity with regard to persons and to the common good".[4] The just man, often mentioned in the sacred scriptures, is differentiated through a habitual right thinking and the upright conduct made manifest towards neighbor.[5] Ultimately,

> justice as a cardinal virtue inclines one to give whatever is due to God, one's neighbor, to oneself. By its extent and implications one of the most important and far – reaching of the virtues, for with charity it should govern man's relations with his fellows; it must be distinguished from charity, for justice involves what is due to another by right… Justice which inclines one to give another what is due as a man irrespective of who he is.[6]

Thus, to infringe the right of another person is tantamount to sinning against justice.[7]
Owing to the relevance of justice and unity in the life of the Church, these values are not to be seen to diminish but to be improved. Consequently, in the document from the Synods of Bishops – *Convenientes ex universo* it is clearly emphasized that: "The Church has received from Christ the mission of preaching the Gospel message… universal brotherhood and a consequent demand for justice … and to denounce instances of injustice… while the Church is bound to give witness to justice, she recognizes that anyone who ventures to speak to people about justice must first be just in their eyes. Hence, we must undertake an examination of the modes of acting and of the possessions of life style found within the Church herself"[8]. In reference to Church unity, this explains why the position of the Catechism of the Catholic Church cannot be truer that: "Christ always gives his Church the gift of unity but the Church must always pray and work to maintain, reinforce and perfect the unity that Christ wills for her".[9]

This task of praying and working to ensure that unity is sustained is saddled on all. The Decree *Unitatis Redintegratio* confirms that the work for and sustenance of unity "involves the whole Church, faithful and clergy alike. It extends to everyone; according to the talent of each, whether it be exercised in daily Christian living or in theological and historical studies".[10]

Consequently, it behooves on the ecclesiastical institution to in accordance with the provisions of the law resist actions of members of the Church who instead of promoting the unity of the Church and the advancement of justice rather involve in violating same through their disordered choices and actions. By so doing, the Church safeguards, protects, defends and preserves her so cherished values of unity and justice from been abused or violated. Obviously, to violate unity and justice implies to break or act contrary and contradictorily to the established rule or principle.[11] It therefore, becomes incumbent on the Church to maintain sanity and order in the activities of Christ's faithful in this instance of safeguarding the violation of unity and justice in the Church through employing prohibitive prescriptions or norms.

**Prohibitive Prescriptions or norms of Canons 285 and 287**

The aforementioned Canons prohibit specifically clerics from performance of actions that are themselves stipulated within the prescriptions of the said laws. Jorge de Otaduy in his commentary on Canon 285 classifies Canons 285, 286, 287 and 289 as the primary prohibitions affecting the clerical conduct.[12] He goes on to state clearly and categorically that: "The prohibitive norm indicates a concrete negative value which emerges, without any doubt whatsoever, as a boundary that cannot be crossed by just behavior. In this sense, prohibitions or negative recommendations fulfill an important mission, insofar as the establishment of the statute of the sacred ministers is concerned".[13]

**The Rule in Canons 285 and 287**

Canon 285§1 prescribes thus: "Clerics are to refrain completely from all those things which are unbecoming to their state, according to the prescripts of particular law".[14] Canon 285§2 prescribes that: "Clerics are to avoid those things which, although not unbecoming, are nevertheless foreign to the clerical state".[15] In the third paragraph of the same Canon is the following prescription: "Clerics are forbidden to assume public offices which entail a participation in the exercise of civil power".[16] The fourth paragraph of the Canon stipulates that:

> Without the permission of their ordinary, they are not to take on the management of goods belonging to lay persons or secular offices which entail an obligation of rendering accounts. They are prohibited from giving surety even with their own goods without consultation with their proper ordinary. They also are to refrain from signing promissory notes, namely, those through which they assume an obligation to make payment on demand.[17]

Canon 287§1 contains the following prescription: "Clerics are always to do their utmost to foster among people peace and harmony based on justice".[18] In the second paragraph this is prescribed: "They are not to play an active role in political parties or in directing trade unions unless, in the judgement of the competent ecclesiastical authority, this is required for the defence of the rights of the Church or to promote the common good".[19]

**Historical Developments of Canons 285 and 287**

The prescriptions as contained presently in Canons 285 and 287 are traceable to the different stages of development that were made possible through the documents and legal traditions of the Church. Canon 285§1 has its foundational basis in the Pio – Benedictine Code of 1917 specifically in Canon 140 that prescribes thus: "Where there is danger of scandal, especially in public theaters, clerics should avoid shows, dances, and spectacles".[20] The prescription in Canon 285§2 evolved from the Pio- Benedictine code of Canon 139§1. It stated thus: "They should avoid those things that, while not indecent, are still alien to the clerical state".[21] The prescription of Canon 285§3 evolved from Canon 139§2 of the Pio – Benedictine Code that rules that: "They shall not exercise medicine or surgery without an apostolic indult; they shall not act as public functionaries or notaries, except in the ecclesiastical Curia; they shall not assume public offices that encompass the exercise of lay jurisdiction or administration".[22] The rule in Canon 285§4 evolved from Canon 139§3 of the 1917 Code of Canon Law that states the following:

> Without the permission of their Ordinary, they shall not go into the conduct of goods belonging to lay persons or into secular offices requiring the duty of rendering accounts; they shall not act in the role of procurator or advocate except in ecclesiastical tribunals or in civil [cases] that involve their goods or the goods of their Church; in lay criminal trials threatening grave personal penalties [to the defendant], they shall take no part, not even by offering testimony without necessity[23]

The evolving process of Canon 287§1 began in the words of the decree of *Presbyterorum Ordinis* no. 6 thus:

> Priests exercise the function of Christ as Pastor and Head in proportion to their share of authority. In the name of the bishop they gather the family of God as a brotherhood endowed with the Spirit of unity and lead it in Christ through the Spirit of God the Father…. In building up a community of Christians, Priests can never be the servants of any human ideology or party. Rather their task as heralds of the Gospel and Pastors of the Church is the attainment of the spiritual growth of the Body of Christ.[24]

In the document – *Ultimis Temporibus* no.7 there was advancement in the evolving of Canon 287§1 in these words: "In the pursuit of his ministry, the priest can contribute greatly to the establishment of a more just secular order, especially in places where human problems or injustice and oppression is more serious. He must always, however, preserve ecclesial communion and reject violence in words or deeds as not being in accordance with the Gospel".[25] As for Canon 287§2, it evolved from the same aforementioned Post Conciliar document of the Second Vatican Council through the following words:

> The proper mission entrusted by Christ to the priest, as to the Church, is not political, economic or social order, but of the religious order…. In order to determine in concrete circumstances whether secular activity is in accord with the priestly ministry, inquiry should be made whether and in what way those duties and activities serve the mission of the Church….

> This is to be judged by the local bishop with his *presbyterium,* and if necessary in consultation with the episcopal conference.[26]

The progression in the build -up of Canons 285 and 287 as they evolved through the legislations of the 1917 Code of Canon law and the teachings found in the documents of the Second Vatican Council as well as other ecclesiastical documents nurtured, enriched and shaped their contents therein. Thereby availing for the Church suitable and formidable prescriptions befitting the clerics for their corresponding compliance.

**Exegesis of Canons 285 and 287`**

Exegesis here means to investigate, explain and expound the true sense of the Canon[27] through analysis of the words, phrases and even sentences as well as paragraphs contained therein. Canons 285 and 287 which fall within the segment of the obligations and rights of clerics of the book two of 1983 Code of Canon law are of course proper to those in clerical state. These Canons are to be interpreted and understood in the light of the fundamental obligations and rights of all Christ's faithful.[28] The two Canons under consideration are obligations or demands required and expected of clerics. Consequently, they are not simple recommendations but obligatory and binding juridic norms that have validity for the whole Latin Church.[29]

**Textual Analysis of Canons 285 and 287**

In making exegesis of the two Canons under consideration, it shall be done through giving interpretation, meaning and explanation using the following themes: Activities Foreign/Unbecoming to Clerics, Clerics and Public Office, Financial Involvement of Clerics and Clerics Fostering Peace and Harmony Based on Justice.

**(a) Activities Foreign/Unbecoming to Clerics**

Clerics as people chosen, consecrated and set apart (1Peter 2:9) are specifically ordained for divine service.[30] As such, they are to possess a unique identity, live a way of life and indulge in activities that suitably correspond to them and are as well compatible to their state or status. Jesus Christ the High Priest remains a good model for clerics to imitate and thus adopt and adapt to the genuine identity that befits them. The Directory on the Life and Ministry of Priests puts it thus: "Like Christ, the priest must present himself to the world as a model of supernatural life…. The testimony reflected by his life gives the priest his qualification and constitutes his most convincing sermon. The same ecclesiastical discipline lived with real interior motivation turns out to be a providential aid in which to live his own identity."[31]

It is true that there is no specific mention of what is foreign and unbecoming of clerics owing to the fact that such could vary with time, place and even culture. As such, this is left to the local legislation to specify and outline them clearly. Even if such particular legislation is not extant, any form of criminal or immoral activity is foreign and unbecoming of the clerical state. So also is a cleric accepting to be an executioner, bodyguard etc.[32] It is on this basis that the prescriptions of Canon 285 §§1 and 2 prohibits

social order; those behaviours that detract from or are foreign to the clerical state. They are behaviours that are contrary to the dignity and social reputation that the sacred ministry deserves. They include a wide degree of unseemly or foreign characteristics that are adjudged to be inappropriate for the clerics even if not specifically considered or legislated under legal norms.[33]

**(b) Clerics and Public Office**

The prescription on clerics assuming public office is a clear and direct hindrance. "It prohibits clerics from participating in the exercise of civil power. This norm, as it has been aptly written finds its justification in the doctrine in the same ontology of the ministerial priesthood and, as a result, in the mission itself of the sacred ministers, consecrated by a particular sacrament and sent to be dispensers of the mysteries of God".[34] The mysteries of God entrusted to them to dispense is for them "to preach the Gospel and shepherd the faithful as well as to celebrate divine worship as true priests of the New Testament".[35] The foregone corresponds with the position of L*umen Gentium* no.31 that: "Secular character is proper and peculiar to the laity. Although those in Holy Orders may sometimes be engaged in secular activities, or even practice secular profession, yet by reason of their particular vocation, they are principally and expressly ordained to the sacred ministry".[36] The prescription of this Canon makes prohibitions beyond just becoming a governor. It extends being a judge, senator and the like. The prohibition does not allow any exceptions. Even though in 1977 draft of Canon 146§2 of the 1917 Code there was provision for the local ordinary to give permission for a cleric to hold such office, this proviso is now completely eliminated.[37] This is understandable since "clergy are men of the Church, their engagement in politics could cause confusion regarding the religious mission of the Church".[38]

Despite the non-consideration of the exception of clerics forbidden from public office, "If a Bishop judged that it would serve a spiritual purpose, he could, in virtue of Canon 87§1, dispense from the norm of this Canon in a particular case. In view of the Church's well – publicized stance on this matter he would have to pay special attention to the just and reasonable cause demanded of Canon 90".[39] And Canon 90§1 is very clear in its prescription that: "A dispensation from an ecclesiastical law is not to be given without a just and reasonable cause, taking into account the circumstances of the case and the importance of the law from which the dispensation is given; otherwise the dispensation is unlawful and, unless given by the legislator or his superior, it is also invalid".[40]

As far as the assuming of public office or civil power by clerics is concerned, the following are worthy of emphasis. Firstly, it is a universal law which imposes obligation on all the clerics of the Latin Church both secular and Religious however their personal and social circumstances within which they live and exercise their ministry. Secondly, the prescription that prohibits such exercise or assuming of public office or civil power is extended to executive, legislative and judicial forms. Thirdly, prescription of Canon 285§3 which forbids clerics from participating in the exercise of civil power or public office is a

norm that is imperative in nature. It is not a simple advice or recommendation. This is obvious from the tone of the prohibition and from the absence of consideration of the possibility to seek permission to act otherwise.[41]

**(c) Financial Involvement of Clerics**

The involvement of clerics in the financial matters of the laity is not left without necessary restrictions. This is understandable because still owing to their unique identity and the demands of their office. As a prescription which encompasses the content of Canons 137 and 139§2 of the 1917 Code of Canon Law, it is meant to safeguard clerical decorum and to aid in preventing them from distractions that would interfere with their ministerial responsibilities.[42] This is what the Directory on the Ministry and Life of Priests would instruct: "Therefore, the Priest will deny himself those worldly activities which are not in keeping with his ministry". [43] Marzoa argues in the same line discouraging clerics from involving in financial matters that: "Involving in activities of this type is inconsistent with the spiritual nature of the sacred ministry. Similarly, it is not edifying to the faithful, since it involves excessive zeal for temporal goods, and it presupposes that certain economic risks will be assumed, which, on occasion, may even affect ecclesiastical goods".[44]

The prescription on the financial involvement of the clerics prohibits them except in some matters where the permission of the Ordinary is to be sought as a condition. In some others however, is an outright prohibition. And so, clerics are not to manage the money or property of lay people without gaining the permission of their Ordinary. Consequently, they would need permission to be guardians of children, executors of will, or trustees of funds. They would be permitted to handle the affairs of relatives or close friends who depend on them. Also, clerics must have the authorization of the competent authority to hold secular offices for which they would by law be accountable.[45] The permission of the ordinary is naturally expected especially when there is a reasonable and urgent need for doing so. Such permission is to be permanent but on temporary basis until the situation of risk that had triggered the intervention is resolved or a favorable settlement pertaining the business is reached.[46]

Acting as Surety is another financial matter the clerics even with their own goods are forbidden to do except they would have consulted their ordinary. A "Surety is a contract by means of which one pledges to pay or fulfill an obligation on behalf of a third party, in the event that the latter fails to do so".[47] Even though according to the prescription it is consultation that is required and not permission, it is expected that the prudent counsel of the ordinary would be accepted by the cleric(s) concerned.[48] Also, involved in the prescription on the financial involvement of clerics is signing of promissory note. The demand for action is very clear in the words of the prescription that: "They are not to sign promissory notes which involve the payment of money but do not state the reasons for the payment".[49] Promissory note is a document in which one is expected to sign which contains the obligation to pay an amount of money that is assumed without specifying the cause.

The mandate to abstain from signing such a document is to limit the risks to ecclesiastical patrimony, thereby demanding cautionary behavior on the part of its administrators.[50]

The foregone prescriptions on the financial involvement of clerics are both prohibitory and cautionary in their tone and structure. This is an intentional reason by the legislator. As held by Gerard Sheehy, it is true that, "The reasoning behind these norms is to safeguard the position of the cleric and make sure that he is able to carry out his life and ministry without unnecessary distractions".[51]

**(d) Clerics Fostering Peace and Harmony Based on Justice**

The Church through whose instrumentality the cleric assumed the said status and performs his duties unambiguously and diligently champions the cause of peace, unity and justice. It will therefore, amount to a contradiction in action to behold clerics who are also stakeholders therein to do otherwise. It is on this basis that the obligation to foster peace, unity and justice that Canon 287 places on clerics is highly expected. Consequently, the prescription is "the positive and generic duty of clerics to foster the preservation of peace and harmony among people."[52] This demand on clerics is necessary and inescapable especially within the Church's life where

> The Priest is a man of communion, in his relations with all people he must be a man of mission, and dialogue. Deeply rooted in the truth and charity of Christ, and impelled by the desire and imperative to proclaim Christ's salvation to all, the priest is called to witness in all his relationships to fraternity, service and common quest for the truth, as well as a concern for the promotion of justice and peace.[53]

As far as promotion of peace is concerned, its object in the Code of Canon Law is precisely that which is founded on justice.[54] And this too like unity and peace is the mission not just the clerics who are part of the Church but the Church in her entirety. The mission of the Church is not to be misunderstood and misinterpreted. Obviously, "Christ did not bequeath to the Church a mission in the political, economic or social order; the purpose he assigned to it was a religious one. But this religious mission can be the source of commitment, direction, and vigour to establish and consolidate the community of men according to the law of God".[55] This also connects to the religious mission of the Church. It is therefore, understandable when clerics intervene for instance in such subjects as the dignity and freedom of the human person, the obligations that the human person is saddled with of being united in society or the manner in which temporal affairs could be ordered corresponding with the established plans of God. Such interventions of the clerics would not be classified as political interference, if the motive behind such is to truly and sincerely help the laity form right conscience that will be their own.[56]

The participation of clerics in active politics and management of unions is not the same as the foregone. This explains why there is an outright prohibition on their participating in them. Participation in active politics and union affairs by clerics is not compatible with

their identity and what the Church upholds as their mission in the world. In fact, "The Priest, as servant of the universal Church, cannot tie himself to any historical contingency, and therefore must be above any political party. He cannot take an active role in political parties or labour unions, unless according to the judgment of the ecclesiastical authority, the rights of the Church and the defense of common good require it".[57] There is no gainsaying that politics and labour unions are good things in themselves. However, they remain foreign to the clerical state because they can constitute a grave danger of division in the ecclesial communion.[58] In reality, since the cleric would need to render service to individuals and society, he cannot avoid being interested in matters that relate to public administration, which inevitably entail an ethical dimension. Besides, the cleric still possesses the right to have a personal political opinion and as well exercise his right to vote according to his conscience. However, it is worthy of consideration that the right the cleric owns to possess a personal political opinion and to vote is not unlimited right. This is so as the external manifestation of his personal political preferential choice may in some instances be resisted by the demands of a pastoral responsibility which seeks to reach everyone as far the proclamation of the gospel is concerned as well as be a sign of unity among all people. Whatever the situation or circumstance, the cleric has to avoid emphasizing his personal opinion as the sole and legitimate one since political choices or opinion is not Gospel nor could same be identified with the truth of the Gospel and be an object of allegiance like the Gospel.[59]

The cleric in the foregone is cautioned that personal right to political preference could in some instances be affected and that his political preference should not be so emphasized to seem to replace the Gospel because there is much more to be profited in the clerical ministry than political activities could offer. As such, where political activities even if it is within the right of the cleric is to be suppressed as unity and justice that the Church avails Christ's faithful through his priestly ministry is significant and necessary. It is to be remembered always that:

> the Church shows itself as a sign of the spirit of brotherhood which renders possible sincere dialogue and strengthens it. Such a mission requires us first of all to create in the Church itself mutual esteem, reverence and harmony… In this way all who constitute the people of God will be able to engage in ever more fruitful dialogue, whether they are pastors or other members of the faithful. For the ties which unite the faithful together are stronger than those which separate them: let there be unity in what is necessary…. [60]

An inappropriate participation of clerics in active politics and political unions or affairs would always cause divisive harm to other members of the Church and thus obstructing the Church from availing Christ's faithful the invaluable assets of unity, dialogue, harmony and justice.

Another valuable asset that the inappropriate participation of clerics in public office and political parties would seem to disrupt and obstruct is the universality of the Church and

her mission. When clerics actively participate in politics and belong to political parties, the Church is partitioned and divided along different lines of opinions and allegiance. This misrepresents the mission of the Church which by its nature and mission is universal since it is not committed to any one culture or to any political, economic or social structure. Consequently, the Church is able to unify communities of men and nations as long as they trust her and guarantee it true freedom to carry out its mission.[61] Again, inappropriate participation in politics and political unions or affairs cannot impact on Christ's faithful within the Church and the generality of humanity as her universal nature and mission would. Needless to state, that clerics are indispensable stakeholders in enhancing and supporting the universal mission of the Church. As a matter of fact, for a cleric, "the reduction of the mission to temporal tasks, of a purely social or political nature, is foreign to his ministry, and does not constitute a triumph but rather a grave loss to the Church's evangelical fruitfulness".[62] This explains why the prescription of Canon 287 emphasizes the principal responsibility of the Clergy; which is "to promote unity in the community. Their ministry is directed to all the faithful, not just to the members of a political party or a trade union".[63] It is understandable therefore, that the Church through her prescriptions firmly prohibits such activities being entertained by clerics whose identity, mission and ministry remain unique and indispensable as allocated them by the same Church as enshrined in her traditions, teachings and legislations.

Since Canon 227 gives lay faithful the right and freedom to permeate the temporal order propelled by the spirit of the Gospel, they are to be formed and well prepared for a better informed participation in active politics for the greater advantage and interest of the Church; not the clergy. In fact, "it is important that the clergy be seen first and foremost as representatives of the Church. It is their responsibility to assist lay persons in forming their own consciences correctly in these complex issues".[64] If however, a cleric must take an active part in politics and political unions for the defense of the rights of the Church or the promotion of common good, the prohibition of the law on such activities could be removed on a very exceptional basis. This exception is expected that there be thorough and rigorous evaluation of the circumstances justifying the participation of cleric in politics. More so, such evaluation justifying it cannot rest on the personal judgement of the cleric, but rather falls upon the ecclesiastical authority. This process will furthermore, demand the consent of the bishop, after he would have consulted the presbyteral council and where also required, the bishops' conference.[65] In the view of Marzoa these careful and rigorous requirements are laid down to ensure that the process "involves a basic measure of prudence, intended to avoid dangerous temptations that could easily take shape in the heat of political passion". [66]

The political passion and its corresponding temptations have the capacity to cause the Church so much as the members of Christ's faithful could end up being divided along the lines of allegiance to political parties. This negative impact will even be more when clerics who are meant to be at the forefront of the Church's mission and ministry soil their hands in active politics and involving themselves in the affairs of political parties. The immediate

negative effect to the expected ministry of clerics which the Church has saddled them with is the battering or total extinction of unity/harmony and justice. This will now manifest within the Church and outside her a distorted presentation of what the Church upholds, stands for and impacts. This amounts to the Church deviating from the ideal of her known nature, mark, character and mission owing to the wrong choice and decision of clerics who are expected to be better informed of what is required and also be at the forefront of enhancing and supporting the realization of same. The reality however, remains that some clerics seem not to follow the ecclesiastically stipulated procedures both at the universal and the particular levels of the Church. This has led to their inappropriate participation in political and public matters. This implies their ignoring the stipulated prescriptions and procedures or processes that have been put in place to guard against arbitrariness of any form. In the Church of order, due process and discipline, the competent ecclesiastical authorities have the obligation to correct and guard against such abnormalities that cost the Church so much through exploring the necessary canonical remedies that are disciplinary inclined and oversight mechanisms or structures available to them to remedy such challenges.

**Canonical Remedies for Violations of Canons 285 and 287**

Even as the prescriptions of Canons 285 and 287 are very clear and as such, unambiguous in hindering clerics from active participation in politics and assuming public office, instances abound where some have done that inappropriately. This unfortunate reality obviously disrupts and violates unity and justice in the Church and even outside her since the mission also extends to those outside her. The Catholic Bishops Conference of Nigeria (CBCN) decries this reality of inappropriate participation of clerics in active politics and the exercise of public office in the following words: "Over the years, some priests in Nigeria, without the requisite authorization from the competent ecclesiastical authority, have actively ventured into partisan politics or the exercise of public office. This situation has not only contravened the universal laws of the Church… but also scandalized a vast majority of Christ's faithful in the country".[67] For this abnormal trend to be remedied, various approaches that are ecclesiastically and canonically approved should be employed.

Such a canonical remedy is the use of penal remedies and penances as prescribed in Canon 1312 §3 which are primarily meant to prevent violations and offences. This is what is prescribed in the said Canon: "Use is also made of penal remedies and penances: the former primarily to prevent offences, the latter rather to substitute for or augment a penalty".[68] The point of emphasis here is that penal remedies should be firstly adequately and appropriately employed to prevent the violation of Canons 285 and 287 which will be expected to translate to the safeguarding of unity and justice in the Church. "Penal remedies are not penalties in the strict sense: rather, they are preventive interventions by the concerned authority".[69] Penal remedies in the 1917 code specifically in Canon 2306 were the following: warning, correction, precept and vigilance. The 1983 Code in Canon 1339 mentions only warning and correction or reproof.[70] The warning and correction of the competent ecclesiastical authority in the particular Church can go a long way in preventing

and prohibiting the rupture of harmony/unity and peace through the inappropriate participation of clerics in politics and the exercise of public office.

**(a) Warning and Correction of the Local Ordinary**

The competent ecclesiastical authority being the Bishop of the diocese or his delegate has the capacity given to him by law (Canons 1312§3, 1339§§1 and 2) to harness warning and correction or reproof in preventing and even prohibiting the violation of the prescriptions hindering the inappropriate participation in politics and exercise of public office by clerics. According to Gerard Sheehy the Ordinary can issue a warning and correction so as to prevent someone subject to his authority from committing an offence. In a circumstance that there is an objective reason to believe that an offence would have been committed already, warning and correction could still be served to hinder a reoccurrence. Such warning and correction may be given personally by the Ordinary himself or through his delegate.[71] The warning and correction of the Ordinary can be enhanced through the following:

(1) Clearly enshrining in the Diocesan Pastoral Instruction or Policy the prescription prohibiting clerics from active participation in politics and exercise of public office. This will be in form of stepping down and bringing closer the prescriptions in Canons 285§3 and 287§2. This is necessary as it is not every cleric that would envision the content in the Code as being close to him. The very fact of such prescriptions being contained in the diocesan instruction or policy and emphasis made by the authority as to why it is contained therein sends a powerful message to the clerics that the competent authority is nontolerant about such violations.

(2) Hindering of Political Rallies/Activities within the Church and Church Programmes. Churches and Church activities within the particular Church should be strictly reserved for spiritual and religious activities. Being faithful to this instruction and ensuring its compliance will help to keep vigilance and create a precautionary divide between clerics and politicians as well as political activities. This precautionary divide has the capacity to avert the clerics from knowingly or unknowingly crossing over to the political space or arena.

(3) Vigilance and Advice by the Nigerian Catholic Diocesan Priests Association (NCDPA) body of the Particular Church. This body being actively present in the particular Church of the Diocese, Province and National levels would remain a veritable and valuable structure in keeping safety vigilance towards clerics at all these levels. This is to help the Competent Authority of the Particular Church who may not possess available information about clerics who would be gradually going beyond their limit and meddling into political affairs and space. By the NCDPA at their level keeping safe and precautionary vigilance, would easily dictate and have an information of such clerics. Such privileged information should be employed to advice such clerics as a body against the inappropriate step taken in participating in politics and public office even before they get deeper to be entangled. The same body having rendered the advice is to objectively observe the response of such clerics and if there is no retreat, should not

hesitate to translate their observations to the Competent Church Authority for further redemptive action.

(4) Giving early warning and correction by the Competent Authority. The authority is to immediately swing into action of warning and correction as soon as the ascertained information reaches him of clerics inappropriately indulging in political activities and public office. This warning and correction however early should be documented in writing as prescribed in Canon 1339§3.

(5) Creation of the Diocesan Office of Political/Public Affairs and Appointment of a Responsible and Trustworthy Priest(s) into such an office to coordinate Political/Public Matters and be a liaison person between the Church and Political Authorities. This will aid in narrowing or streamlining political matters towards one direction; that is, the priest saddled with the said responsibility. By so doing, political or public matters will not be left porous to the free interference, infiltration and exploration of every cleric in accordance with their discretion, whims and caprices within the particular Church. With political and public matters being tied to the office and coordinated by a particular priest designated by the competent ecclesiastical authority of the particular Church, all the clerics will be under the instruction of going through such an office as far as political and public matters are concerned. This will aid in curtailing the unregulated and unchecked participation and interference of clerics in political and public matters. With this attained, clerics may not easily meddle with such political and public matters to the extent of leading to their inappropriate participation in them. This will enhance to an extent the protection and preservation of clerics from the temptation of dabbling into political and public matters indiscriminately and thus keeping the Church safe to advance in unity and justice.

(6) Should there be need for clerics to participate actively in politics and assume public office in the interest of the defence of the rights of the Church and to promote the common good as prescribed in Canon 287§2, such proposed expression of interest should not be allowed to come from the individual cleric concerned. It should be processed by the competent ecclesiastical authority through employing the relevant consultative bodies within the particular Church to ascertain such a need. After this, a competent and trustworthy cleric who would accomplish such a task; always having the mind of the Church and interest of the Church at heart is to be saddled with the responsibility. This is to ensure that the particular cleric that the relevant bodies within the particular Church would have advised the competent authority to permit to participate in political or public affairs is truly processed through and by the common and collective interest of the Church. Such a process leading to such a responsibility being saddled on such a cleric is expected to keep him always conscious of how he got this mandate and the expectations/demands of the Church on him in carrying out such a responsibility.

It is expected that the foregone penal remedies when appropriately employed and applied to prevent the inappropriate participation of clerics in politics as well as assuming of public office should provoke and evoke compliance by the clerics of the particular Church in the spirit of obedience to the Bishop and the Supreme Pontiff. This should be so since Canon

273 prescribes that: "clerics have a special obligation to show reverence and obedience to the Supreme Pontiff and to their own Ordinary."[72] Obedience and never disobedience is to be imbibed by clerics conscious of the fact that: "Attitudes of respect and obedience on the part of the clergy towards ecclesial authorities, … do not simply respond to manifestations of the exercise of the power of jurisdiction or to motivations of a merely pastoral nature, but rather express essential aspects about the nature and mission of presbyters."[73]

**(b) Catholic Bishops Conference of Nigeria (CBCN) Penal Measures**

Having explored the penal remedies which are meant to prevent the inappropriate participation of clerics in politics as well as assuming public office and such is not attained, stricter canonical remedies are to be employed and applied. In this regard, the Catholic Bishops Conference of Nigeria (CBCN) on the 1st October, 2024 during the Solemnity of Our Lady Queen and Patroness of Nigeria issued the following penal measures:

(1) A cleric who is culpable of violating the prohibitions established by Canon 285§3 and Canon 287§2, notwithstanding the appeals and two canonical warnings of his proper Ordinary (Cf. Canon 1339§1), and who has given no sign of reform, must be suspended from every exercise of the power of Orders and of governance (Cf. Canon 1333) for an appropriate period and could be punished with canonical sanctions, such as having to reside in a particular place or territory (Cf. Canon 1336§2, no.1).

(2) If the cleric persists, he also incurs the delict of disobedience to ecclesiastical authority according to the norm of Canon 1371. In this case, the proper Ordinary, considering that this is disobedience in a grave matter about the specific ecclesial context, can ask the Dicastery for evangelization to apply the penalty of dismissal *in poenam* of the cleric from the clerical state by virtue of the faculties granted by the Holy Father.[74] The Catholic Bishops Conference of Nigeria in giving the penal measures did not exclude the religious. Thus, they stated the following: "It is also important to note that, in accordance with Canon 672, the prohibitions established in Canon 285§3 and 287§2 apply equally to religious. Therefore, Major Superiors of Religious Institutes in Nigeria are urged to take note of these canonical provisions and ensure their diligent application within their respective jurisdictions".[75] Whatever penalties that the competent authority would have imposed should be clearly stated and the specific actions expected of the offender should be stipulated within the decree or judgement by which such a penalty is imposed. Also, every mechanism required should be put in place and employed to ensure compliance to the penalties imposed.

The penal remedies and penances as prescribed in Canon 1312 §3 which are primarily meant to prevent offences as well as the penal measures issued by the Catholic Bishops Conference of Nigeria which are stricter because of penalties prescribed upon any violation are all geared towards ensuring orderliness in the Church. The orderliness required is that clerics avoid active participation in politics and assuming public office inappropriately so that clerics can concentrate on the religious responsibility saddled on them by the Church. The Catholic Bishops Conference of Nigeria in the concluding part of the penal measures they issued reiterated this

thus: “We reaffirm the Church’s unequivocal prohibition against clerics actively engaging in partisan politics or assuming public office without proper ecclesiastical authorization. This is a matter of utmost gravity, and we urge all priests to adhere faithfully to these canonical laws and embrace their sacred duties with the utmost fidelity and devotion”.[76] Obviously, the duties of clerics in the Church also includes the promotion of unity, peace and justice in accordance with the terms and standards of the Church that has remained at the fore front of ensuring same. It is owing to this fact that any activity that would temper with the promotion of these values is to be demoted; especially when ecclesiastical legislations have clearly legislated on such matters.

**Conclusion**

It is expected that members of the Church be true to their responsibilities allocated to them in the prescriptions of the Church. Being true to their responsibilities which are prescribed in the ecclesiastical legislations would enhance and promote the advancement of the common good of the Church. No doubt, focusing and working towards the common good of the Church by all Christ’s faithful is a necessity that would aid the Church to be sustained and flourish in safeguarding not just unity and justice but many more essential values that are inherent in her and that she so dearly preserves and promotes. Even though the promotion of that which enhances the common good of the Church is saddled on every Christ’s faithful, the demand is more on those who are clerics. It is therefore, expected of the clerics to spare no opportunity to ensuring that they safeguard the peace, unity and justice of the Church. The safeguarding of the unity of the Church is dependent on the promotion of justice through obedience to the prescribed legislations of the Church. Therefore, clerics are expected to be at the forefront of this demand owing to the bond of unity, solidarity, communion and collaboration that exists between them and the competent ecclesiastical authority both at the particular and universal levels of the Church. It is true that:

> By its very nature, the ordained ministry can be carried out only to the extent that the priest is… in hierarchical communion with his own bishop. The ordained ministry has a radical “communitarian form” and can only be carried out as a collective work… The ministry of priests is above all communion and a responsible and necessary cooperation with the bishop’s ministry, in concern for the universal Church and for the individual particular churches, for whose service they form with the bishop a single presbyterate.[77]

It is therefore, an aberration that clerics violate the clearly prescribed legislation of Canons 285 and 287 which prohibit their inappropriate participation in politics and assuming of public office. It should not be so because “no one is more aware than the priest of the fact that the Church needs norms. In fact, since the Church’s hierarchical and organic structure is visible, the exercise of its functions, divinely entrusted, especially those concerning its guidance…, must be adequately organized.”[78] For clerics therefore, to violate the foregone canonical prescriptions which in effect disrupts peace, unity and justice in the Church is to flaunt the obligation of obedience to the Church and the competent ecclesiastical authority. And this is rather an unfortunate path to follow since “in obeying the constituted authority, the priest, furthermore, enhances mutual charity within the priesthood and also enhances that unity which has its foundation in the truth.”[79]

In the interest of safeguarding the unity and justice of the Church, the competent ecclesiastical authority employing all other institutions available and accessible to him in the particular Church should maximize the use of penal remedies which are majorly preventive. These may go a long way in preventing the violation of Canons 285 and 287 which is tantamount to violating the unity and justice of the Church by clerics. With clerics prevented from such violations, they will be expected to generously take on their duties and as well faithfully fulfil each and every norm, disallowing any partial compliance of Church legislations or total disobedience of same. It should not be so because this reality creates division and has damaging effects upon lay faithful and public opinion. As such, the canons that prescribe on the prohibition of clerics from inappropriate participation in politics and assuming of public office as well as other canonical laws by their very nature demand compliance and so should it be.[80]

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